

See also: The Ten Commandments and Mosaic law 20–23 ■ The Twelve Tables 30
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and opens with a prologue, in which the king declares that he had been ordered by the gods “to bring about the rule of righteousness in the land, to destroy the wicked and the evil-doers; so that the strong should not harm the weak.” Pillars were set up in Babylonian cities so that all could see and follow the laws.

An eye for an eye

Hammurabi's laws are, like those in Ur-Nammu's code, set out as conditional statements. Number 196 in its list of 282 judgments is “If a man put out the eye of another man, his eye shall be put out.” This principle reappeared in the books of Exodus and Leviticus, as part of the Hebrew Torah, and then in Roman law as *lex talionis* (the law of retaliation). Its purpose, however, was not to encourage retaliation, but to limit it to fit the offense.

Ur-Nammu's code had a less brutal approach to retribution for violent crime. Each part of the body was given a value in weights of

The ziggurat, a vast stepped pyramid topped with a shrine, was the religious center of Mesopotamian cities.

silver. Someone who cut off another person's foot, for example, incurred a fine of “ten shekels.” This idea of financial penalty—a fine—rather than physical retaliation is closer to modern ideas on punishment. ■



In future time, through all coming generations, let the king, who may be in the land, ... not alter the law of the land which I have given.

The Code of Hammurabi



Judicial procedures

Court cases recorded on clay tablets show how justice was administered in Mesopotamia. There were no formal courthouses or lawyers. Accusers and accused, together with witnesses, appeared before an assembly of local people or city elders—or a panel of three to six judges in more serious cases—and provided oral or written testimony. Like today, participants swore a solemn oath to tell the truth. This could take place in a public space, the king's palace, or the city's temple, where the accused swore on a symbol of the local god. In some cases, people confessed because they feared angering the god by swearing falsely.

If a case could not be solved, it became a decision for the gods. The legal solution in Hammurabi's code was a trial by ordeal, where the accused had to leap into the Euphrates River: “If he sink in the river his accuser shall take possession of his house. But if the river prove that the accused is not guilty, and he escape unhurt, then he who had brought the accusation shall be put to death.”



The chief god of Babylon, Marduk (center), representing order, defeats the serpentine sea deity Tiamat, representing evil and chaos.